

Court No. - 36

Case :- WRIT - C No. - 14449 of 2010

Petitioner :- Smt. Neelam Pandey & Anr.

Respondent :- State Of U.P. Thru. Secr. Energy & Ors.

Petitioner Counsel :- I.S. Singh Vatsa

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sheo Kumar Singh,J.

Hon'ble Yogesh Chandra Gupta,J.

As prayed, put up this matter as fresh on 30.3.2010.

Order Date :- 25.3.2010

M.A.A.

Court No. - 36

Case :- WRIT - C No. - 14449 of 2010

Petitioner :- Smt. Neelam Pandey & Anr.

Respondent :- State Of U.P. Thru. Secr. Energy & Ors.

Petitioner Counsel :- I.S. Singh Vatsa

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sheo Kumar Singh,J.

Hon'ble Rajesh Chandra,J.

Claim of the petitioner is for providing the electricity connection.

Petitioners claim to be the tenant.

Objection of Sri. Dube for not providing the electricity connection is the lack of consent of the landlord.

In respect to tenancy rights, an agreement has been filed and thus we are not to make any comment on the rights in the property. Copy of the agreement between the landlord and the tenant in which liability to pay the electricity charges is admitted/stated by the landlord is to be interpreted by the corporation.

On these facts this Court directs the corporation to provide the electricity connection to the petitioners on/or before the date fixed, or to file show cause before this Court.

Put up this matter on 19.05.2010.

Order Date :- 4.5.2010

M/A.

Court No. - 2

Case :- WRIT - C No. - 14449 of 2010

Petitioner :- Smt. Neelam Pandey & Anr.

Respondent :- State Of U.P. Thru. Secr. Energy & Ors.

Petitioner Counsel :- I.S. Singh Vatsa

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

By this writ petition, the petitioner has prayed for a writ of mandamus, directing the respondent no. 3 to provide a commercial electric connection at the shop in question in the name of the petitioners.

Sri H.P. Dube, learned counsel for the respondents no. 2 and 3 submits that 'no objection certificate' has not been submitted by the petitioner from the landlord hence, the connection could not be given. He further submits that the remedy of the petitioners is to make an appropriate application in accordance with para 4.4 of the U.P. Electricity Supply Code, 2005 read with Annexure 4.2.

In the facts of the present case, no direction as prayed for in the writ petition can be issued. However, we observe that in case the petitioners move an application in accordance with the provisions as indicated above, the appropriate action will be taken by the respondents in accordance with law.

The writ petition is disposed of.

Order Date :- 19.5.2010

LA/-